

Approved as to
form only:

MFO
Date: 7/22/21

CITY CONTRACT NO. _____

VOLLEYBALL OFFICIATING AGREEMENT

This Agreement is made and entered into this _____ day of _____, 2021,
by and between the City of Cheyenne, a municipal corporation of the State of Wyoming, 2101
O'Neil Avenue, Cheyenne, Wyoming 82001, hereinafter referred to as "City," and the Officials
For Fun Club, P.O. Box 1533, Cheyenne, Wyoming 82003-1533, hereinafter referred to as
"Club."

W I T N E S S E T H:

NOW, THEREFORE, in consideration of the mutual covenants and conditions contained
herein, it is hereby agreed as follows:

1. That the Club shall perform the following services during the City's 2021-2022
season for Youth Co-Rec Volleyball League, Adult Volleyball League, and Adult Co-Rec
Volleyball League.

a. The Club shall provide and assign one (1) official for the Youth Co-Rec
Volleyball League match and two (2) officials to each Adult and Adult Co-Rec
Volleyball League match to officiate according to the schedule provided to the Club by
the City; the second official keeps score and line judges. The Club shall provide the City
with a schedule of the officials assigned to each match at least one (1) week in advance of
each match.

b. The Club shall provide the City with a list of names and telephone
numbers of all Club personnel and officials at least one (1) week before the start of the
season. The Club will update the list as changes occur and provide a copy to the City.

c. The Club shall ensure that all officials assigned to the matches are properly trained and will perform their duties in accordance with the current year's Cheyenne Community Recreation and Events, Recreation Division's By-Laws, Code of Conduct, governing rules, and any applicable addendum to these documents. By-Laws and Code of Conduct are incorporated into the Agreement by reference.

d. Officials are required to wear a uniform designated by the Club.

e. The Club will report all player ejections to the City on the provided form within two (2) working days of the ejection.

f. The Club shall ensure that officials sign-in with the gym supervisor at least fifteen (15) minutes prior to the scheduled match time. A sign-in sheet will be provided to the gym supervisor by the City. In the event an official is late signing in or does not comply with this Agreement, the Club will be fined as follows:

i. Five Dollars (\$5.00) if official is not signed in with gym supervisor fifteen (15) minutes prior to start of match;

ii. Eight Dollars and Fifty Cents (\$8.50) if second official (Adult Leagues only) arrives after the first game of the match that started;

iii. Ten Dollars (\$10.00) if second official (Adult Leagues only) arrives after the second game of the match that started;

iv. Twenty Dollars (\$20.00) if second official (Adult Leagues only) does not arrive for entire match;

v. Ten Dollars (\$10.00) for each score reported incorrectly; and

vi. Five Dollars (\$5.00) for not being properly dressed as stated in this Agreement.

g. A fine sheet shall be submitted every week to the Club.

2. The City shall pay the Club:

a. Twenty Dollars (\$20.00) per match for each Youth League (one official), and Forty Dollars (\$40.00) per match for each Adult and Co-Rec League (two officials) officiated by the Club;

b. A fee of One Hundred Fifty Dollars (\$150.00) for the Fall Adult League, One Hundred Fifty Dollars (\$150.00) for the Winter Adult Co-Rec League, and One Hundred Fifty Dollars (\$150.00) for the Youth League for training, scheduling, and administrative costs. This fee shall be paid by the City in full on the first invoice provided by Club;

c. The City will notify Club of any cancellations or forfeiture by 3:30 p.m. the day of the scheduled match. If notification is made after 3:30 p.m., City will pay Club the match fee; and

d. If the City has notified the Club of a second or third (middle match), Club will be paid at the rate of Ten Dollars (\$10.00) per official to hold referees.

3. The City shall not pay the Club if both officials are missing from an Adult League volleyball match at the scheduled game time. The match shall be deemed to have not been officiated by the Club and the Club will not be paid for the match. The Club will be fined Forty Dollars (\$40.00) for the match.

4. Payment.

- a. Club shall invoice the City for services rendered.
- b. The invoice will detail services, fees, and fines.
- c. City will provide Club a list of the City payables schedule.

5. Insurance Requirements.

a. The Club hereby agrees that it shall acquire, prior to the start of the season, a fidelity bond with minimum limits of Ten Thousand Dollars (\$10,000.00) to cover any potential loss which the City may sustain through the fraud, dishonesty, forgery, theft, embezzlement, misappropriation, or any other criminal act or omission by any of the officers of the Club.

b. The Club must provide proof of the following insurance coverage:

i. Commercial General Liability Insurance. For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of One Million Dollars (\$1,000,000.00) per occurrence, Two Million Dollars (\$2,000,000.00) aggregate for the entire term of the Agreement.

ii. Additional Insurance Policy Information. The Club shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance and shall provide the City with a copy of the endorsement.

c. Club shall provide the City with certificates of insurance acknowledging the above-stated coverage prior to beginning any work under this Agreement.

d. It is understood and agreed that these policies are primary and not

contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Club to immediately notify in writing the City Risk Manager, City Clerk, and City Attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

e. Club shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Club's obligation hereunder.

f. Any insurance company providing coverage under this agreement shall have a minimum A. M. Best rating of A- (excellent).

6. Independent Contractor. At all times during the term of this Agreement, the Club shall be considered an independent contractor. Neither the Club nor anyone employed by it shall represent, act, purport to act, or be deemed to be the agent, representative, employee, or servant of the City.

7. Acceptance Not Waiver. The City's approval of, acceptance of, or payment for any of the services of this Agreement shall not be construed to operate as a waiver of any of the City's rights under this Agreement or any of its legal rights under statute or common law arising out of the performance of this Agreement.

8. Default. Every term and condition contained in this Agreement, including payment obligations, shall be deemed a material element of this Agreement. In the event either

party should fail or refuse to perform according to the terms of the Agreement, such party may be declared in default.

9. Remedies.

a. In the event that the City declares the Club in default of this Agreement, the City shall notify the Club in writing. The Club shall be allowed a period of fifteen (15) days to cure the default. In the event the default remains uncorrected, the Club may elect to:

- i. Terminate the Agreement and seek damages;
- ii. Treat the Agreement as continuing and require specific performance; or
- iii. Avail itself of any other remedy at law or equity.

10. Termination. The City representative may, by fifteen (15) days written notice to the Club, terminate this Agreement in whole or in part for the City's convenience. In the event of termination for convenience, the City will pay the Club for work performed as of the date of termination.

11. Notices. All notices arising out of or from the provisions of this Agreement shall be in writing and given to the parties either by regular mail or delivery in person as follows:

Officials for Fun Club
Attn: Debby Followell
P.O. Box 1533
Cheyenne, Wyoming 82003-1533

City of Cheyenne, CRE
Recreation Division
Attn: David Mullen
1317 Parsley Blvd.
Cheyenne, Wyoming 82007

12. Waiver. The waiver by either party of any term, condition, covenant, or breach of any term, condition or covenant shall not constitute a waiver of any other term, condition, or

covenant or the breach thereof.

13. Governing Law, Jurisdiction, and Venue. The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

14. Compliance With Laws. The parties agree that they will perform their obligations as provided in this Agreement in accordance with the applicable laws and ordinances.

15. Severability. If any provision, section, subsection, sentence, clause, or phrase of this Agreement is invalidated by any court of competent jurisdiction, such holding will not affect the validity of the remainder of the Agreement, which shall continue in full force and effect.

16. Successors and Assigns. All the terms, conditions, and provisions herein shall inure to the benefit of and be binding upon the parties hereto and their respective successors and assigns.

17. Assignment. Neither party shall assign this Agreement and any attempt to assign shall be void without prior written consent of both parties. Any delegation or assignment shall not operate to relieve either party of its responsibilities under this Agreement. However, nothing in this Agreement shall prohibit the Club from subcontracting to a qualified subcontractor with written consent of the City.

18. Drug-Free Workplace. In compliance with the Drug-Free Workplace Act of November 1988, the City has established an alcohol and controlled substance policy that pertains alcohol and drug usage by City employees. All independent contractors under contract with the

City, and their employees or subcontractors, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Club while performing the duties and responsibilities of this Agreement. It is the responsibility of the Club to familiarize itself with the requirements of this policy and to inform all its employees and subcontractors of the requirements and to insure compliance with it. If the Club, its employees, or subcontractors are found in violation of this policy, this Agreement may be terminated.

19. Minority Business Enterprises. All parties to this Agreement assure that no person shall be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this agreement on the grounds of age, race, color, disability, national origin, or sex. The parties further assure that it will include the language of this paragraph in all agreements associated or connected in any way with this Agreement and shall cause all existing agreements to similarly include this clause therein.

20. EEOC and ADA Compliance:

The Club is notified that it must comply fully with all requirements of the Equal Employment Opportunity Commission (EEOC) and the Americans with Disabilities Act (ADA) in the same manner as is expected from the City. If the Club or its employees or subcontractors are found in violation of these requirements, this Agreement may be terminated. The Club shall be responsible for all non-compliant action and shall defend, hold harmless, and indemnify the City from such action.

21. Governmental Immunity. The City reserves all immunities and defenses available under the Wyoming Governmental Claims Act, Wyo. Stat. § 1-39-101, *et seq.*

22. Term. This Agreement shall commence on the 1st day of October, 2021, and conclude on the last day of the 2021-2022 Winter Adult Co-Rec season.

23. Entire Agreement of Parties. This Agreement contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter. Time is of the essence.

In witness thereof, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Agreement.

CITY OF CHEYENNE, WYOMING

By: _____
Patrick Collins, Mayor

(SEAL)
Attest:

Kristina F. Jones, City Clerk

OFFICIALS FOR FUN CLUB

By: _____

Print Name: _____

Title: _____